



CHAPTER xcvi.

An Act for empowering the British Gas Light Company Limited to expend further capital at Norwich.

A.D. 1903.

[21st July 1903.]

WHEREAS by the British Gas Light Company Limited (Norwich) Acts 1858 to 1896 (in this Act referred to as "the recited Acts") the British Gas Light Company Limited (in this Act called "the Company") were empowered to lay down mains and to supply gas in the city and county of Norwich and the liberties and precincts thereof and also in the suburbs of the said city :

And whereas by the recited Acts the capital which the Company were authorised to expend for the purposes of the said Acts was limited to the sum of two hundred and eighty-five thousand pounds the whole of which has been expended and it is expedient that in order to meet the increasing demand for the supply of gas within the said limits the Company should be empowered to expend further capital for those purposes :

And whereas it is expedient that the amount chargeable by the Company as part of the expenses of the management of their undertaking at Norwich should be increased :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the British Gas Light Company Limited (Norwich) Act 1903 and the recited Acts and this Act
[Price 3d.]

[Ch. xcvi.] *British Gas Light Company Limited* [3 EDW. 7.]
(*Norwich*) Act, 1903.

A.D. 1903. — may be cited together as the *British Gas Light Company Limited* (Norwich) Acts 1858 to 1903.

Interpreta-
tion.

2. In this Act the expression “the undertaking” means and includes the gasworks and lands and works connected therewith vested in or constructed or to be constructed by the Company under the authority of the recited Acts.

Power to ex-
pend further
capital.

3. Notwithstanding anything contained in the recited Acts the Company may expend for the purposes of the undertaking the sum of one hundred and forty thousand pounds in addition to the sum of two hundred and eighty-five thousand pounds already expended under the powers of the said Acts. Provided always that of the said sum of one hundred and forty thousand pounds by this Act authorised to be further expended the sum of one hundred and five thousand pounds and no more may be so expended out of the capital stock of the Company and the Company may from time to time borrow on mortgage in respect of such further capital so authorised sums not exceeding in the whole the sum of thirty-five thousand pounds. Provided further that the profits to be divided by the Company in respect of so much of the additional capital of one hundred and five thousand pounds as may from time to time be actually expended shall not exceed five pounds per centum per annum whether such capital shall be issued as ordinary capital or as preference capital and that the rate of interest to be paid upon any sums so borrowed on mortgage shall not exceed four pounds per centum per annum. And the Company shall not have power to convert into shares or stock the said sum of thirty-five thousand pounds or any part thereof.

Of the moneys which the Company are by this Act authorised to expend the first thirty-five thousand pounds shall be expended out of moneys borrowed on mortgage and all moneys to be borrowed for the purposes of this Act shall be borrowed on the best terms obtainable at the time of borrowing the same.

Provisions of
Act of 1858
to apply to
capital ex-
pended under
this Act.

4. Except as herein otherwise expressly provided all the provisions of the Act of 1858 respecting the capital thereby authorised to be expended shall apply to the capital by this Act authorised to be expended.

Restriction
on making up
deficiencies
in profits in
previous
years.

5. Notwithstanding anything contained in the recited Acts or in this Act no profits shall be divided by the Company in any year for the purpose of making up any deficiency in the profits in any previous year after the expiration of five years from the year in which the deficiency occurred :

[3 EDW. 7.] *British Gas Light Company Limited* [Ch. xcvi.]
(*Norwich*) Act, 1903.

Provided that this section shall not affect the right of the Company to make up at any time deficiencies which have occurred prior to the first day of January one thousand nine hundred and three. A.D. 1903.

6. Section 9 of the *British Gas Light Company Limited* (*Norwich*) Act 1875 (Limiting the expense of management at *Norwich*) is hereby repealed and the Company may charge as part of the expenses of the management of their undertaking at *Norwich* any proportion of the general expenses of the chief office of the Company in London including directors' salaries not exceeding one thousand two hundred pounds per annum. Repeal of section 9 of Act of 1875.

7. The Company shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the copy is omitted to be forwarded and every director or manager of the Company who knowingly and wilfully authorises or permits such default shall incur the like penalty and every penalty under this Act shall be recoverable summarily. Copy of Act to be registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

8. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise relating thereto shall be paid by the Company. Expenses of Act.

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